

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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AL LYTHCOTT,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER DENZIL
TRIM, Tax No. 956307, POLICE OFFICER PAUL
PARKINSON, Tax No. 935466, POLICE OFFICER
JEFFREY ROSA, Tax No. 964259, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates KINGS
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 17, 2020

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER DENZIL TRIM, Tax No. 956307, 71st Precinct, 421 Empire Blvd,
Brooklyn, NY 11225
POLICE OFFICER PAUL PARKINSON, Tax No. 935466, 71st Precinct, 421 Empire
Blvd, Brooklyn, NY 11225
POLICE OFFICER JEFFREY ROSA, Tax No. 964259, 71st Precinct, 421 Empire Blvd,
Brooklyn, NY 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

AL LYTHCOTT,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER DENZIL
TRIM, Tax No. 956307, POLICE OFFICER PAUL
PARKINSON, Tax No. 935466, POLICE OFFICER
JEFFREY ROSA, Tax No. 964259, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff AL LYTHCOTT, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On April 21, 2019 at approximately 7:00 p.m., plaintiff Al Lythcott, while lawfully standing in the vicinity of New York Avenue and Winthrop Street, Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was unlawfully imprisoned at the 71st Precinct where he was unlawfully strip searched and Kings County Central Booking until the District Attorney declined to prosecute plaintiff on April 22, 2019 and he was released from custody. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questions, frisked, searched, confined, strip searched, falsely arrested, and falsely imprisoned plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff AL LYTHCOTT is a resident of the state of New York.

3. POLICE OFFICER DENZIL TRIM, Tax No. 956307, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER DENZIL TRIM, Tax No. 956307, was at all times relevant herein, assigned to the 71st Precinct.

5. POLICE OFFICER DENZIL TRIM, Tax No. 956307, is being sued in his individual and official capacity.

6. POLICE OFFICER PAUL PARKINSON, Tax No. 935466, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER PAUL PARKINSON, Tax No. 935466, was at all times relevant herein, assigned to the 71st Precinct.

8. POLICE OFFICER PAUL PARKINSON, Tax No. 935466, is being sued in his individual and official capacity.

9. POLICE OFFICER JEFFREY ROSA, Tax No. 964259, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER JEFFREY ROSA, Tax No. 964259, was at all times relevant herein, assigned to the 71st Precinct.

11. POLICE OFFICER JEFFREY ROSA, Tax No. 964259, is being sued in his individual and official capacity.

12. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does #1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

17. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on July 16, 2019.

18. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

21. Pursuant to NYS Executive Orders 202.8, 202.14, 202.28, 202.38, 202.48, 202.55, and 202.60 duly executed by NYS Governor Andrew Cuomo related to the COVID-19 health crisis, all claims filed herein are deemed timely filed.

STATEMENT OF FACTS

22. On April 21, 2019, at approximately 7:00 p.m., plaintiff was lawfully standing in the vicinity of New York Avenue and Winthrop Avenue, Brooklyn, New York when the defendant police officers unlawfully stopped, questioned, and frisked plaintiff without probable cause, or any legal justification.

23. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the police officer have an objective reason to believe that plaintiff committed a crime or violated the law in any way.

24. At no time did the defendant police officers recover any weapons, drugs, contraband or other illegal paraphernalia from plaintiff or from plaintiff's possession, custody or control.

25. Nevertheless, plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

26. Plaintiff was transported by the defendant police officers to the 71st Precinct against his will, where plaintiff was photographed, fingerprinted and placed in a holding cell.

27. At the 71st precinct, defendants conducted an unlawful strip search of plaintiff even though they did not recover any weapons, drugs, or contraband from plaintiff during the initial search, and had no reason to believe plaintiff was hiding contraband on his person, causing humiliation and emotional distress.

28. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

29. On April 21, 2019 at approximately 11:30 p.m., plaintiff was transported to Brooklyn Central Booking and placed in a holding cell.

30. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff possessed a controlled substance when in fact they never recovered any controlled substance from plaintiff.

31. On April 22, 2019, the District Attorney declined to prosecute plaintiff and plaintiff was released from custody without any charges.

32. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, strip search, false arrest and imprisonment of plaintiff.

33. Additionally, there is a policy, practice or custom within the New York City Police Department, wherein New York City Police Officers illegally strip search individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01 Civ. 6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. October 23, 2002).

34. New York City Police Officers have testified under oath that it is the policy, practice, and custom of the New York City Police Department to conduct strip searches of every person that is arrested. United States v. Gonzalez, 08 Cr 363 (BSJ), 2009 U.S. Dist. LEXIS 59742 at *7 (S.D.N.Y. March 2, 2009).

35. In fact, the Honorable Barbara S. Jones presiding in the Southern District of New York held that "there is a '[NYPD] departmental policy of strip searching all arrestees without making any assessment of particularized circumstances.'" Gonzalez, 2009 U.S. Dist. LEXIS 59742 at *20 (S.D.N.Y. March 2, 2009).

36. As a result of defendant City of New York and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely conduct strip searches without reasonable suspicion and/or probable cause to believe a prisoner has secreted contraband underneath his clothing, there is a pattern, policy, custom or practice of New York City Police Officers strip searching individuals without a factual basis that establishes probable cause and a legal basis to conduct the strip search.

37. The unlawful stop, question, frisk, search, seizure, strip search, false arrest and imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully stopped, questioned, frisked, searched, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

40. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

43. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

46. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

49. Defendants lacked probable cause to search plaintiff.

50. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

56. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

57. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Al Lythcott. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

63. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

64. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Unlawful Strip Search

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Plaintiff was strip-searched by defendants without an individualized reasonable suspicion or probable cause to believe plaintiff was concealing weapons or other contraband underneath her clothing based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Unlawful Strip-Searching All Prisoners Arrested For A Drug Related Crime

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

74. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally strip searching individuals without a specific, articulable factual basis supporting a reasonable suspicion and probable cause to believe the individual secreted contraband, evidence, or has a weapon inside a body cavity as required by Sarnicola v. The County of Westchester, 01-CIV-6078, 2002 U.S. Dist. LEXIS 20305 at *28-29 (S.D.N.Y. Oct.

23, 2002), as well as inadequate screening, hiring, retaining, training, and supervising its employees with respect to this issue.

75. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

76. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

77. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

78. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully strip searched on two occasions at the 52nd Precinct by the individually named defendant police officers.

79. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

85. Defendants failed to intervene to prevent the unlawful conduct described herein.

86. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

87. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

91. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAAYER FOR RELIEF

WHEREFORE, plaintiff Al Lythcott demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 17, 2020

By: /s/
STUART E. JACOBS
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
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Brooklyn, NY 11225

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 17, 2020

/s/
STUART E. JACOBS